

26STCV16628 26STCV16628

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Case Number: 26STCV16628 Hearing Date: August 19, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 19, 2026

Case Name: Harmon v. Mission School Transportation, Inc., et al.

Case No.: 26STCV16628

Matter: Demurrer

Moving Party: Defendant Wayfinder Family Services

Responding Party: No opposition on the Docket

Ruling: The Demurrer is sustained, without leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This action arises out of an incident occurring on January 26, 2024, in which Plaintiff Jill Harmon, a bus driver employed by Defendant Mission School Transportation, Inc., was allegedly battered and subjected to racial slurs by passenger Steven Galvan, an adult special-needs resident of Defendant Wayfinder Family Services ("Wayfinder").

Plaintiff filed her Complaint on May 26, 2026, asserting 27 causes of action against various defendants. Ten of those causes of action are directed at demurring Defendant Wayfinder:

Violation of the Ralph Civil Rights Act (1st COA)

Violation of the Tom Bane Civil Rights Act (2nd COA)

Intentional Infliction of Emotional Distress (5th COA)

Negligence (6th COA)

Negligent Supervision and Control (7th COA)

Negligent Undertaking (8th COA)

Negligent Failure to Warn (9th COA)

Violation of the Unruh Civil Rights Act (23rd COA)

Premises Liability (24th COA)

Breach of Fiduciary Duty (25th COA)

Wayfinder now demurs to each of these claims for failure to state sufficient facts, arguing that the tort and statutory claims are barred by the applicable two-year statute of limitations (Code Civ. Proc. § 335.1), and that the civil rights and fiduciary duty claims fail to state sufficient facts to constitute a cause of action.

While it appears Plaintiff served an opposition on Wayfinder, no opposition appears on the Court's docket.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

1. Statute of Limitations Bar (2nd, 5th, 6th, 7th, 8th, 9th, 23rd, and 24th Causes of Action)

Claims for personal injury, negligence, intentional infliction of emotional distress, premises liability, and statutory violations under the Bane Act and Unruh Act are subject to a two-year statute of limitations (Code Civ. Proc. § 335.1; Gatto v. County of Sonoma (2002) 98 Cal.App.4th 744, 754-760).

Plaintiff's alleged injuries occurred during the assault on January 26, 2024. The statutory period expired on January 26, 2026. Plaintiff filed her Complaint on May 26, 2026—four months after the expiration of the statutory period.

To invoke the delayed discovery rule or fraudulent concealment to avoid a statute of limitations bar, a plaintiff must plead specific facts showing (1) the time and manner of discovery, and (2) the inability to have made earlier discovery despite reasonable diligence (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808; *Grisham v. Phillip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638). Conclusory allegations are insufficient (*CAMSI IV v. Hunter Tech. Corp.* (1991) 230 Cal.App.3d 1525, 1536–1537).

Plaintiff fails to plead any element of delayed discovery. The only facts pleaded are generalized and conclusory: "Plaintiff did not and could not reasonably discover, despite diligence, the full factual basis of her claims against non-employer Defendants and the full extent of Mission's post-assault statutory violations until after information was belatedly disclosed, pieced together, or otherwise became reasonably available. The facts not known to Plaintiff at the time of the assault included the full extent of The Help Group's and Wayfinder's prior knowledge of Steven Galvan's racist hostility and dangerous propensities Plaintiff discovered or reasonably could have discovered those facts only after persistent efforts to obtain the police report, demands for records, repeated follow-up communications, and the piecing together of information after Defendants delayed disclosure."

Plaintiff does not specifically allege when she supposedly had suspicion of Wayfinder's involvement or wrongdoing. Plaintiff does not allege the date of the police information or how it triggered a unique suspicion that did not exist earlier. On the contrary, Plaintiff was the subject of Galvan's open attack shortly after picking Galvan up from Wayfinder. That put her on "inquiry notice" to investigate all potentially responsible parties connected to that pickup location—including Wayfinder. Moreover, Plaintiff affirmatively pleads that in October 2025 (months prior to the statutory deadline), she served detailed pre-litigation demands outlining the assault facts, student-profile failures, route risks, and disclosure demands (Compl. ¶ 53).

Accordingly, the 2nd, 5th, 6th, 7th, 8th, 9th, 23rd, and 24th Causes of Action are time-barred on their face.

2. Civil Rights Claims (1st, 2nd, & 23rd Causes of Action)

The Ralph Civil Rights Act (Civ. Code § 51.7) requires an allegation that the defendant committed or threatened violent acts against the plaintiff or their property (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 880–881). The Complaint contains no allegation that Wayfinder itself committed or threatened any violence against Plaintiff.

The Bane Act (Civ. Code § 52.1) requires interference with a constitutional right accomplished through threats, intimidation, or coercion (*Jones v. Kmart Corp.* (1998) 17 Cal.4th 329, 334). A failure to warn or failure to provide an escort does not constitute actionable threat, intimidation, or coercion under the statute.

The Unruh Civil Rights Act (Civ. Code § 51) prohibits discrimination in accommodations, advantages, facilities, or services offered by "business establishments". Plaintiff was assaulted on a vehicle owned by her employer while transporting a resident. Wayfinder was not operating as a business establishment providing accommodation or public service to Plaintiff.

3. Breach of Fiduciary Duty (25th Cause of Action)

To plead a cause of action for breach of fiduciary duty, a plaintiff must establish the existence of a fiduciary duty running directly to them (*Marzec v. CalPERS* (2015) 236 Cal.App.4th 889, 915). Plaintiff alleges that Wayfinder owed a fiduciary duty to Steven Galvan (Compl. ¶ 110). Plaintiff cannot assert a claim as an incidental third-party beneficiary to an alleged fiduciary duty owed to another (*Schauer v. Mandarin Gems of Cal., Inc.* (2005) 125 Cal.App.4th 949, 957).

In sum, the Demurrer is sustained. The Court is inclined to deny leave to amend because the defects—including the statute of limitations bar and lack of any underlying duty or actionable conduct by Wayfinder—appear on the face of the Complaint and cannot be cured by amendment.

Moving party to give notice.